

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE OF PAGES 1 4		
2. AMENDMENT/MODIFICATION NO. 0002		3. EFFECTIVE DATE 04/02/2025		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO. (If applicable)	
6. ISSUED BY USDA-FS STEWARDSHIP CONTRACTING BR 1400 INDEPENDENCE AVE SW MS-1138 WASHINGTON DC 20250-1138		CODE 363N		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)				(x) 9A. AMENDMENT OF SOLICITATION NO. 12363N22Q4000			
							x 9B. DATED (SEE ITEM 11) 09/30/2022
				10A. MODIFICATION OF CONTRACT/ORDER NO. 10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.EO 14148, EO 14173, EO 14168, and EO 14208						
x	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).						
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:						
	D. OTHER (Specify type of modification and authority)						
E. IMPORTANT: Contractor ☐ is not ☒ X is required to sign this document and return _____ 1 _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)							
New Mexico Forest Engineering Road Maintenance (FERM) BPA ; Amendment 0002 12363N22Q4000							
This amendment implements two FAR class deviations to ensure compliance with Executive Orders 14148, 14173, 14168 and 14208, issued since January 20, 2025. It also removes FAR clauses and provisions that did not comply with FAR Part 12 procedures for the acquisition of commercial products and services and AGAR clauses and provisions that have been rescinded.							
These updates reflect recent policy changes, eliminate outdated requirements, and streamline the solicitation. All previous versions of this solicitation are hereby rendered obsolete.							
Continued ...							
Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				MARK T. PHILLIPP			
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA		16C. DATE SIGNED	
_____ (Signature of person authorized to sign)				_____ (Signature of Contracting Officer)			

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED 12363N22Q4000/0001	PAGE	OF
		2	4

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	The following FAR provisions and clauses are hereby removed in their entirety from the New Mexico Engineering Road Maintenance (FERM) BPA: ⌋ 52.222-21 Prohibition of Segregated Facilities ⌋ 52.222-26 Equal Opportunity ⌋ 52.222-27 Affirmative Action Compliance Requirements for Construction ⌋ 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026* *This provision was removed to comply with the Executive Order titled "Additional Rescissions of Harmful Executive Orders and Actions," dated March 14, 2025. The following FAR clauses now include deviations to align with recent Executive Orders: ⌋ 52.212-3 Offeror Representations and Certifications;Commercial Products and Commercial Services (MAY 2024) (DEVIATION FEB 2025) ⌋ 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders;Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025) ⌋ 52.222-9 Apprentices and Trainees (JUL 2005) (DEVIATION FEB 2025) ⌋ 52.223-1 Biobased Product Certification (MAY 2024) (DEVIATION FEB 2025) ⌋ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION FEB 2025) ⌋ 52.244-6 Subcontracts for Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025) The following references to AGAR Clauses and Provisions are hereby removed to comply with AGAR Rule 2024-22463 (89 FR 81014): ⌋ AGAR 452.215-73 Post Award Conference (NOV 1996) /1 ⌋ AGAR 452.216-74 (FEB 1988) (Applicable to Time-and-Materials/Labor Hour BPA Calls) ⌋ AGAR 452.219-70 Size Standard and NAICS Code Information (SEP 2001) /1 ⌋ AGAR 452.228-70 Alternative Forms of Security (NOV 1996) Continued ...				

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	¿ AGAR 452.228-71 Insurance Coverage (NOV 1996) ¿ AGAR 452.236-77 Emergency Response (NOV 1996) ¿ AGAR 452.237-74 Key Personnel (FEB 1988) /1 1/ AGAR clauses and provisions that were included in full text have been retained, with only the AGAR reference removed. The following AGAR clause is hereby included: ¿ AGAR 452.236-70 Emergency Response, Fire Suppression and Liability (NOV 2024) The New Mexico Forest Engineering Road Maintenance (FERM) BPA has been updated to comply with FAR Part 12 Procedures. All call orders will incorporate these changes by reference at the time of the award. For existing awarded call orders, these changes will be incorporated during the next contract modification. Disclaimer: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications; Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM. In advancement of Section 2 of Executive Order 14208, the removal of requirements related to Executive Order 14057 eliminates all non-statutory sustainability requirements or preferences in purchases of food service wares, including paper straws. In addition to removing requirements related to Executive Order 14057, the attachment also reflects recent updates to Code of Federal Regulation citations for the U.S. Department of Agriculture's BioPreferred® Program, a statutory purchasing preference Continued ...				

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	program. These class deviations will remain in effect until rescinded or incorporated into the FAR. Period of Performance: 12/05/2022 to 12/30/2032				